☐ ORIGINAL

At the Family Court of the State of New York, held in and for the County of Westchester, at the Courthouse, 111 Dr. Martin Luther King, Jr. Blvd, White Plains, New York on the 16 day of July, 2018

NOTICE OF ENTRY
PLEASE TAKE NOTICE that the within is a true copy of an order entered in the office of the Clerk of the Family Court of the State of New York in the County of Westchester.
Date: 7/16/18
Chief Clerk of the Court
Order Distributed ☐ P ☐ R ☐ P-ATY ☐ R-ATY ☐ C-ATY ☐ M
☐ DSS/SCU
☐ OTHER

PRESENT:
Hon. Arlene Gordon-Oliver, Family Court Judge

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

In the Matter of a Proceeding under the *Uniform Child Custody Jurisdiction and Enforcement Act* [Article 5-A of the Domestic Relations Law]
TARA WALSH,

Petitioner,

-against-

STEPHEN G. RUSSELL,

Respondent.

File No. 154703
Docket No. O-6417-18/A
ORDER TO SHOW CAUSE – UCCJEA

Upon the petition of TARA WALSH verified on July 12, 2018 and attached to this Order to Show Cause, the Affirmation of Lydia S. Antoncic, Esq. dated July 12, 2018, the annexed Memorandum of Law, all of the exhibits attached hereto, and on all of the prior proceedings in this matter, and pursuant to Domestic Relations Law §§ 75-g, 76-d, 77-g and 77-h,

IT IS HEREBY ORDERED that STEPHEN G. RUSSELL show cause before a term of this Family Court, Part 3, to be held in the courthouse located at 111 Dr. Martin Luther King, Jr Boulevard, White Plains, New York, on the 17 **day of July, 2018 at** 9:30 o'clock in the forenoon of that day, or as soon thereafter as the parties and/or their attorneys can be heard, why an Order should not be made and entered, as requested in the annexed petition, awarding sole legal and physical custody to Petitioner regarding the following child named in the petition:

Name(s)	Date(s) of Birth
E.V.	[redacted]

Together with counsel fees pursuant to Family Court Act §651(b) and Domestic Relations Law §237 (b), and such other and further relief as the Court deems appropriate,

Public copy: the child's legal name is shown as E.V.; dates of birth and private street addresses are removed. Otherwise unchanged.

AND IT IS FURTHER ORDERED that pending the hearing on this motion:

And the Court having searched the statewide registry of orders of protection, the sex offender registry and the Family Court's warrant and child protective records, and having notified the attorneys for the parties and for the child of the results of these searches;

And the Court having considered and relied upon the following results of these searches in making this decision [specify; if no results found, so indicate _____]:

SUFFICIENT CAUSE BEING ALLEGED THEREFORE, IT IS HEREBY ORDERED that pending the hearing on this motion, Petitioner shall have temporary ~~sole legal and~~ physical custody of [redacted] E.V. (DOB [redacted]); and the child shall not be removed from the State of NY until further order of this Court; and

ORDERED that service of a copy of this Order, and all the papers upon which they are based, upon Respondent, Stephen G. Russell, on his attorney, Stacey Poole, Esq., via overnight mail to 535 Pacific Ave #2, San Francisco, CA 94133 and email to stacey@cafamilylaw.com pursuant to the Court's directive on July 2, 2018, on or before **July 16, 2018** shall be deemed sufficient service thereof; and

ORDERED that answering papers, if any, including any cross-motion, shall be served upon counsel for Petitioner and be filed with the Court so as to be received in hand by both the Court and counsel for all parties no later than on _____; and it is further

ORDERED that reply papers, if any, shall be served upon counsel for all parties and filed with the court on the return date of this motion; and it is further

ORDERED that all parties and counsel are required to appear upon the return date of this motion, and it is further

Dated: July 16, 2018

ENTER

Hon. Arlene Gordon-Oliver
Judge of the Family Court

AGO JFC

Ordered that Faith Miller, Esq. is hereby appointed as attorney for the child and shall be served by July 16, 201 via email at fgm@mzw-law.com and sheilas@mzw-law.co

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

In The Matter of a Proceeding for
Custody under the *Uniform Custody Jurisdiction and Enforcement Act*

Docket No. _____
File No. 154703

TARA WALSH,

Petitioner,

-against-

STEPHEN G. RUSSELL,

Respondent.

PETITION–UCCJEA CUSTODY

TO THE FAMILY COURT:

The undersigned Petitioner respectfully alleges upon information and belief that:

1. I am the mother of [redacted] (DOB [redacted]) (hereinafter the "Child") and am seeking custody of the Child.

2. I reside at [redacted], Chappaqua, New York 10514.

3. Respondent Stephen G. Russell is the Child's father as acknowledged in the Child's birth certificate. Respondent resides at [redacted], San Francisco, CA 94105.

4. The name, gender, current address and date of birth of each child who is the subject of this Proceeding, and present address of the person with whom each child resided during the past five years is as follows:

Name	Gender	Date of Birth	Current Address	Name of Person with Whom Child Resides	Dates
[redacted]	F	[redacted]	[redacted] Chappaqua, New York 10514	Petitioner	6/9 to Present
			[redacted] Brooklyn, New York 11231	Petitioner	Birth to 6/9

5. Petitioner and Respondent were not married and never lived together. The Child lived solely with the Petitioner since the Child's birth in New York.

6. This Court has jurisdiction to issue a child custody or visitation order pursuant to Section 76(1) of the Domestic Relations Law on the following ground(s):

- This state is the home state of the child on the date of the filing of this petition. The Child was born in New York, is less than six months old, and has resided exclusively with me. The Child has only been absent from the state for brief periods of time for purposes of visitation with Respondent in California.

- Petitioner, the Child's mother is, and has always been a resident of the State of New York since the inception of her long-distance relationship with Respondent in approximately 2015.

- The Child has a significant connection to the State having been born here and resided here her entire life but for brief absences to California to visit Respondent. The Child's grandparents and many aunts and uncles reside in New York who actively participate in the Child's care and protection.

- Respondent filed a Custody petition in San Francisco Superior Court (Case No. FPT-18-377425). California should decline jurisdiction as it is not the Child's home state and New York is the more appropriate forum under Domestic Relations Law §§76-f or 76-g, because the Respondent has engaged in threatening and abusive conduct towards Petitioner and the Child as set forth in Petitioner's Family Offense Petition dated June 25, 2018 (annexed hereto as **Exhibit "A"**) resulting in a Temporary Order of Protection issued by this Court (Walsh v. Russell- Docket No. O-06917-18) (annexed hereto as **Exhibit "B"**) and Ms. Walsh's Declarations in support of her Motion to Dismiss dated June 26, 2018 and in opposition to Mr. Russell's application for Emergency Jurisdiction dated July 10, 2018 submitted to the California court and annexed hereto as **Exhibits "D" and "E."**

- In addition, the California Custody petition (originally filed on June 4, 2018) was improperly served on Petitioner, as Mr. Russell personally served Ms. Walsh which is impermissible, and a Motion to Dismiss is pending annexed hereto as **Exhibit "D."**

7. This Court should exercise temporary, emergency jurisdiction, pursuant to Domestic Relations Law §76-c, because the child is presently in this State and it is necessary in an emergency to protect the child, a sibling or parent of the child:

See Family Offense Petition dated June 25, 2018 and Temporary Order of Protection Entered on July 2, 2018 **(Exhibits "A" and "B.")**

Ms. Walsh's Declarations in support of her Motion to Dismiss dated June 26, 2018 and in opposition to Respondent's application for Emergency Jurisdiction dated July 10, 2018, annexed hereto as **Exhibits "D" and "E"** respectively, and include specific allegations of abuse are incorporated herein.

Respondent has been physically abusive to me. In or about March, 2018, respondent Steve became enraged one day and said he was breaking my laptop and my cellphone. As I asked him to calm down, he became violent and smashed me around the kitchen pulling me up and down against the center island and the floor with full force to remove my laptop from my arms. Steve was able to finally remove the laptop and smashed it on the ground. I had bruises all over my leg and backside and had trouble walking/running

for close to two weeks. (Photo attached as Exhibit E to Petitioner's Declaration in opposition to Respondent's application for Emergency Jurisdiction dated July 10, 2018, annexed hereto as **Exhibit "E"**). Respondent does not restrain himself in the presence of our daughter, and I believe he poses an even greater danger to her given she is an infant.

8. The following proceeding has been commenced that could affect this action: Stephen G. Russell v. Tara Walsh, Case No. FPT-18-377425, Superior Court of California, County of San Francisco (custody proceeding). Upon information and belief, a hearing on the issue of jurisdiction is scheduled for July 31, 2018 after Respondent filed an emergency application annexed hereto as **Exhibit "C"** (with exhibits and Mr. Russell's supporting Declaration only).

9. Petitioner has not participated as a party or witness in other litigation concerning the custody of the same child except as set forth herein.

10. I know of no person not a party to the proceedings who claim to have custody or visitation rights with respect to the child affected by this proceeding.

11. Petitioner obtained custody of the Child upon the Child's birth in New York on J[redacted].

12. It would be in the best interests of the Child for Petitioner to have custody for the following reasons:

- Petitioner has been the Child's sole and primary caretaker since birth. The Child lived solely with Petitioner since birth, with brief visits to California to visit Respondent.
- Petitioner takes the Child to all of her doctor's appointments and attends to her daily care.
- Respondent has never cared for the Child, other than providing financial support. Respondent does not know the first thing about how to care for an infant.

13. A Temporary Order of Protection was issued against Respondent on June 25, 2018 (O-06917-18) and expires on July 17, 2018.

14. No previous application has been made to any court or judge for the relief herein requested, except as set forth herein.

WHEREFORE, Petitioner respectfully requests this Court to issue:

A. An order awarding sole legal and physical custody of the above-named Child to the Petitioner and granting Respondent only supervised parental access with the Child in New York State;

B. An order directing the following temporary, emergency measures to protect the child, a parent or sibling: the Petitioner and the Child not be removed from the State of New York;

C. An order directing the Respondent to pay Petitioner's attorneys' fees and costs, including reasonable and necessary travel expenses, for the prosecution of this proceeding fees pursuant to Family Court Act §651(b) and Domestic Relations Law §237 (b).;

D. Continuing the Temporary Order of Protection entered on June 25, 2018 and expiring on July 17, 2018 (O-06917-18).

E. An order directing such other and further relief as the Court may determine to be just and proper.

Dated: July 12 2018

Tara Walsh, Petitioner

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